

ANSWER TO COUNTERCLAIM INSTRUCTIONS

If you want to file an ANSWER TO A CIVIL CASE COUNTERCLAIM.

A counterclaim is a claim made by the Defendant against the Plaintiff. If the Defendant files a counterclaim, you (the Plaintiff, *counter-Defendant*) have **TWENTY (20) calendar days** from the date received in which to file an **Answer to Counterclaim**.

There is no fee to file an answer to a counterclaim.

A DEFAULT JUDGMENT MAY BE ENTERED FOR FAILURE TO ANSWER THE COUNTERCLAIM

Please STOP...

- If you have not received a counterclaim.
- If your time to answer has expired and there has already been a judgment rendered.

Please PROCEED...

- If you are within the time allowed for filing an Answer to Counterclaim.

FORMS Needed:

- Answer to Counterclaim.

INSTRUCTIONS:

1. Complete the form and make copies. The court will require an original and you may wish to keep a copy; additionally, each named Defendant will need a copy of your answer.
2. File (or mail) the original form with the court clerk.
3. Mail or deliver copies to the Defendant(s) or the attorney(s) for the Defendant(s).

IT IS IMPORTANT THAT ALL PARTIES KEEP THE COURT APPRISED OF ANY CHANGE IN ADDRESS.

A Notice of Change of Address form must be filed with the court when a party changes their address.